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Submitter Information

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General Comment

Attached please find the comments of the Data Transfer Initiative (DTI).

Attachments

DTI NSF AI FILING - 3-14-25



March 14, 2025

Comments of the Data Transfer Initiative on the Development of an Artificial Intelligence (AI) Action Plan (FR Doc. 2025–02305)

The Data Transfer Initiative (DTI) appreciates the opportunity to submit comments in response to NSF’s Request for Information (RFI) on the Development of an Artificial Intelligence (AI) Action Plan.

Introduction

DTI is a U.S. 501(c)(4) nonprofit organization dedicated to empowering individuals by enabling simpler, faster, and more secure data transfers through data portability at scale. Born out of the Data Transfer Project (DTP), a collaborative open-source effort initiated in 2018 by a consortium of technology companies, DTI advances its mission through the design and implementation of open source data transfer tools and other innovations and investments to foster a healthy portability ecosystem, and by helping translate principle to practice and catalyzing greater user agency and empowerment.

Since evolving into the independent DTI organization, our work has expanded to include projects focused on trust-building, mapping the portability landscape, collaborating with a broad set of stakeholders, and serving as an expert resource to policymakers and regulators globally.

Data portability provides benefits to innovation, competition, user agency, and the broader economy. Over the years, DTI and its partners have enabled millions of users to transfer personal data such as photos and playlists across services. Today, we are working towards effective data models, frameworks, and tools for the specific context of personal data used in generative AI, to unlock a future where individuals, businesses, and institutions can seamlessly transfer their data between AI services. We see this expansion as an integral part of ensuring that U.S. businesses remain flexible and competitive, users maintain control over their information, and American AI development continues to flourish.

Advancing AI Leadership Through Data Portability

The United States is a leader in AI innovation, and ensuring continued leadership requires policies that promote competition, consumer choice, and secure technological advancement. The recent executive orders on AI emphasize the need to remove barriers that could slow innovation, while also protecting national security and economic interests. AI portability aligns with these objectives by ensuring that individuals and businesses can retain control of their AI-related data, fostering an open and competitive AI ecosystem.

AI Portability: Fundamental for AI Users

People should have control over the personal data that they provide to online services. Just as users expect that the photos they upload to a photo service or social media platform should be portable to other services, so too should they expect their activity within generative AI systems to be portable. This is especially true as AI systems become more personalized and deeply integrated into business and daily life. AI will generate significant social and economic value when people and businesses are empowered to choose the AI services that best suit their needs. The ability to transfer data to personalize and make the most of those services will maximize this value not only for individuals but for the ecosystem as a whole.

But it is important to ensure the right scope for such data transfers. The focus for data portability is on the user's experience, and transferring data specifically associated with the individual and their use of the service. Notably, this does not entail the sharing of internal or proprietary system details, such as model weights or training data, where they are not otherwise made available. This balance—ensuring the portability of user-centric data while protecting sensitive business data—reflects DTI's core principles for data portability.

DTI's AI Work: Implementing Portability in a Practical, Secure Way

DTI helps users seamlessly and securely transfer their personal data across online services. A major part of our work is to develop shared frameworks and tools to make this possible, both inside and outside the context of AI.

To date, our AI-related efforts have centered on conversation histories with text-based generative AI systems—specifically, large language model (“LLM”) services. Recently, we partnered with the AI firm [Inflection](#) to support their efforts to make user conversation histories available through a well-structured, reusable data model. While many companies already offer users the ability to download their data (including conversation history), this functionality is not as effective as structured AI data portability, as it lacks consistency and alignment in both scope and format. The ability to download user conversations on an ad hoc basis can be used by separate generative AI systems for broad purpose personalization—but they have limited value. True data portability can unlock even greater value—which is why we are committed to making portability tools and frameworks a reality.

AI portability is crucial to addressing challenges in the enterprise context, as well. Businesses that build downstream from LLM APIs face the risk of vendor-lock in, or at the very least significant cost and friction when switching between LLM services, as a consequence of misaligned data formats and scopes. Coordination in an evolving market is tricky and standards processes are not always the right initial approach; however, as an independent nonprofit that helps actively coordinate and encourage shared data transfer tools, models, and frameworks

across companies, we believe efforts like DTI's can have a constructive role to play in facilitating alignment in a rapidly progressing industry.

DTI's Recommendations for an AI Action Plan for the Future

As the NSF crafts its AI plan, DTI urges the agency to consider AI portability as an important component of its priority policy actions. AI is rapidly evolving, and policy decisions made today will shape the future of American leadership in the field. AI portability directly supports the goals of the recent AI executive orders because it:

- (1) **Strengthens Market Competition:** Encouraging interoperability and portability ensures that businesses can compete fairly, without artificial barriers that restrict growth.
- (2) **Enhances User Control and Choice:** Users should be able to switch between AI services without losing access to their personal data.
- (3) **Maintains U.S. Leadership in AI:** By promoting AI portability and setting global benchmarks, the U.S. can reinforce its leadership in AI development and deployment.

DTI's U.S. [vision](#) for data portability policy further builds on these ideas and may also serve as a valuable reference in shaping the AI action plan.

Without effective portability, businesses and consumers alike risk being locked into closed systems that limit their choices and slow innovation. A competitive AI marketplace—one that allows for free data flow between services—ensures that American businesses and entrepreneurs can continue to innovate and grow. To make the AI marketplace effective and to support American investment, innovation, and competition, AI portability should focus on user and business data interconnections such as Application Programming Interfaces (APIs).

Conclusion

The U.S. must retain its leadership position for AI development, and ensuring secure, adaptable AI portability is a key part of that strategy. DTI looks forward to working with policymakers, industry leaders, and researchers to develop AI portability solutions that support innovation, economic growth, and consumer empowerment, while keeping American AI leadership secure, competitive, and forward-thinking.

Sincerely,

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Chris Riley, Executive Director

